

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1033
(Legislative Management)
(Juvenile Justice Committee)

AN ACT to create and enact section 54-01-09.4 of the North Dakota Century Code, relating to concurrent federal jurisdiction on military installations.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. Section 54-01-09.4 of the North Dakota Century Code is created and enacted as follows:

54-01-09.4. United States military installations - Concurrent jurisdiction.

1. The state accepts the relinquishment of exclusive legislative jurisdiction from the United States in accordance with this section.
2. The state has concurrent legislative jurisdiction with the United States over any United States military installation under the control of the United States which is located within the boundaries of this state.
3. The concurrent legislative jurisdiction over a United States military installation under this section is effective upon the governor's written acceptance of a request filed by the principal officer, or other authorized representative who has supervision or control over the military installation under chapter 159 of United States Code title 10 [10 U.S.C. 2683], of the military installation where concurrent legislative jurisdiction is sought, relinquishing exclusive legislative jurisdiction and retaining concurrent legislative jurisdiction over the military installation.
4. The governor may not accept a request filed under subsection 3 unless the request:
 - a. States the name, position, and authority of the individual requesting the cession;
 - b. States the subject matter for the concurrent jurisdiction request;
 - c. Describes by metes and bounds the United States military installation subject to the concurrent legislative jurisdiction request; and
 - d. Indicates whether the request includes future contiguous expansions of land acquired for military purposes.
5. If the governor accepts a request filed under subsection 3:
 - a. The governor's acceptance must state each element of the request which is accepted; and
 - b. The governor shall submit the following documents to the secretary of state to index and submit copies to the individual who filed the request for concurrent legislative jurisdiction:
 - (1) The request for concurrent legislative jurisdiction;
 - (2) The governor's written acceptance of concurrent legislative jurisdiction; and
 - (3) A description by metes and bounds of the United States military installation subject to the concurrent legislative jurisdiction.

6. The state may not incur or assume liability as a result of accepting concurrent legislative jurisdiction under this section.
7. After concurrent legislative jurisdiction is established under this section, a state agency or a political subdivision may enter a reciprocal agreement with a United States agency to designate duties related to the concurrent legislative jurisdiction between the parties.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1033.

House Vote: Yeas 90 Nays 0 Absent 4

Senate Vote: Yeas 47 Nays 0 Absent 0

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State